IN THE COURT OF THE HON'BLE FIRST ADDITIONAL DISTRICT MUNSIF OF COIMBATORE

I.A.NO. 02 OF 2024

O.S.NO. 1010 OF 2024

M.Ganesh Kumar and

8 others – Petitioners/Plaintiffs

-Vs-

1.St. Joseph Matriculation
Higher Secondary School, Coimbatore
Represented by Correspondent

2. St. Francis Anglo Indian
Girls High School, Coimbatore
Represented by Correspondent

3. St. Mary's Higher Secondary School, Coimbatore
Represented by Correspondent – Respondents/Defendants

COUNTER STATEMENT FILED BY 1ST RESPONDENT/1st DEFENDANT AND ADOPTED BY RESPONDENT NOS.2 &3/DEFENDANT NOS. 2 & 3

1. The petition is false, frivolous and unsustainable in law and on facts of the case.

2. The petitioner is put to strict proof of all the allegations except those that are specifically admitted herein.

3. The averments in para 1 to 3 of the affidavit that the petitioners are residents of West Club area in Race Course and the respondents' schools are operating in nearby vicinity and the West Club area exists for more than 100 years wherein aged persons are residing and the plaint 'A' schedule property is a private property belonging to ancestors of plaintiffs and other residents as per revenue records which is the only approach road for plaintiff to reach West Club road and the same is under private maintenance etc., are all stoutly and categorically denied as false by this respondent and the petitioners are put to strict proof of the same.

4. The averments in para 4 of the affidavit that the plaint 'B' schedule property belongs to the respondents herein which is facing Trichy Main Road on South and

Government Arts College Road on West comprising of three schools constructed in 1960 and they are using only the main gate on Southern side and they did not open gate on its West in Government Arts College Road and whileso, at present the defendants are planning to put up new construction in 'B' schedule property for a new ICSE School and without using the Southern and Western Side gates, the respondents are attempting to open a gate on its East by demolishing Compound Wall facing 'A' schedule property for its construction as well as entry to school and the said 'A' schedule property is a private one not fit for plying heavy vehicles and to use by school kids since there is intersection between 'A' schedule property layout road and its junction with West Club road on its East which is also a accident prone zone and the residents are using it as oneway etc., are all stoutly and categorically denied as false by this respondent and the petitioners are put to strict proof of the same.

5. The averments in para 9 of the affidavit that despite representation, the respondents had ignored the same as well safety of school kids, well-being of aged persons but to cause nuisance etc., are stoutly and categorically denied as false. So also the averments that the main entrance of the school is common entrance in front of 2nd respondent school and 1st respondent has not put up a gate in main road but using common entrance and the defendant also do not allow any vehicle inside the school causing traffic and now if a gate is opened in 'A' schedule property, the users will park their vehicles by affecting free ingress and egress to their house and moreso it is a private lane enjoyed by residents for more than 100 years and as such these respondents have no right to open a gate facing 'A' schedule property and they being powerful, will indulge upon in a high handed manner and as such the respondents shall be restrained from opening the gate facing 'A' schedule property etc., stoutly and categorically denied as false.

6. At the outset the suit is not maintainable in eye of law and on facts of the case. So also, the suit is liable to be rejected for want of cause of action and thereby an application under Order 7 Rule 11 is filed and without prejudice to the same, this counter statement is filed by denying the claim of petitioners herein.

7. These respondents submit that the plaintiffs have filed the suit jointly in individual capacity and also, for other residents for alleged common cause without

seeking permission under Order 1 Rule 8 of CPC to file it in representative capacity and thereby the suit fails for want of its maintainability.

8. Without prejudice to the above, the plaintiffs no where stated that they have a prima facie case and balance of convenience is in their favour. In fact, the plaintiffs have no prima facie case and also balance of convenience in their favour on the ground that the plaint 'A' schedule property is a 30 feet Layout road in an Approved Layout dated 29.12.1972 in Approved No.22747/72-H9 as per the only title deed produced by the 1st plaintiff herein. Since the title deed of 1st plaintiff itself proves it to be an approved layout road, the plaintiffs cannot have words to allege that it is a private property. It is well settled Law that a layout road in approved layout is public road over which the adjoining site owners much less the plaintiffs have no exclusive or absolute title over it. In fact, the plaintiffs relying upon the Town Survey Land Register wherein their names found and on that basis claiming title over plaint 'A' schedule public road which is untenable for the reasons that revenue records are not title deeds.

9. Further, the plaintiffs claim title over plaint 'A' schedule property by alleging that they got it devolved over them from their ancestors. In fact, the sale deed of 1st plaintiff disclose that the title holder of entire land in T.S.No.1266/1 in favour of Srinivasan Iyengar who cannot be called as common ancestors to plaintiffs. In fact they are purchasers of house sites from such vendors in approved layout, specifically reciting in their sale deeds that plaint 'A' schedule property is a 30 feet layout road and thus, at present the plaintiffs are estopped from claiming absolute ownership over plaint 'A' schedule property.

10. As referred above it is settled position of law that the layout roads in approved layout are public roads which anybody can use it for access. Further the plaintiffs have not produced any instrument of title deeds to prove that the plaint 'A' schedule property was either purchased by them or derived it from any ancestor by way of succession. Rather to say the 1st plaintiff seems to have purchased site in 1976 by having known that suit 'A' schedule property as layout road and thereafter he put up houses thereon and whileso at present alleging that the said West Club area exits for 100 years wherein the residents are peacefully enjoying the same etc., which are

incorrect. Thus, the plaintiffs failed to prove their exclusive ownership or title or interest over plaint 'A' schedule property by excluding these defendants.

11. The plaintiffs have purposely suppressed the production of sale deeds of other plaintiffs, their approved building plans and layout approved plan with intend to get an Order before this Hon'ble Court by suppression of facts namely if all those documents are produced before Court, it shall be well evident that the plaint 'A' schedule property is not a private one but a public road. Besides, the residents on Southern side of 'A' schedule property are not party to the suit and more particularly a Sai Baba Bajan center is there for workship of public itself is an ample proof that the plaintiffs cannot have exclusive ownership over plaint 'A' schedule property more particularly even they have no title over it. At present, a multi-storied commercial complex is under construction on south of plaint 'A' schedule property and that apart several commercial buildings are there.

12. Further the plaint 'A' schedule property is a 30 feet layout road maintained by Coimbatore Municipal Corporation by laying tar roads, erecting EB and waterline etc., and by suppressing it the plaintiffs allege that it is maintained privately. In fact the underground drainage is laid by Coimbatore Municipal Corporation since it is a public road in approved layout and the plaintiffs having known that 'A' schedule property is maintained by Coimbatore Municipal Corporation purposely avoided to include it as a party and thus the suit fails for non-joinder of party.

13. Further as admitted in plaint there are three schools and also a nursery school wherein more than 6000 kids are studying and during peak hours there are congestions on Trichy Road main entrance as well Government Hospital on Western entrance. Besides in between both the entrances there are building constructed as per approved building plan and thereby it is not possible to use both side gates as entry and exit. However, the plaint 'A' schedule property is a public road through which the defendants can use it for free ingress and egress of kids since there is no traffic on West Club road and however the plaintiffs to enjoy the public road as if it is their personal property filed the present suit with ill motive as if the plaint 'A' schedule property is a private property exists for more than 100 years. In fact, the layout itself is formed in the year 1972 as in plaintiffs' sale deed and whileso it is false to allege

that the plaint ‘A’ schedule property exists for more than 100 years and is in exclusive enjoyment of plaintiffs. Rather these respondents also have right of way over plaint ‘A’ schedule property since it is open to public which the petitioners cannot curtail. Moreso, the plaintiffs cannot dictate terms on these respondents/defendants to use a public road since the respondents are tax payers. The plaintiffs for their personal use, dictatory terms on these respondents to use other gates though they are inconveniences and loss of life due to accidents as indicated by public authorities.

14. Further there are many accidents broke out in school zone causing loss of lives of tenders due to lack of emergency exit which everyone knew and the police authorities having anticipated the emergency situations and also to avoid accidents at present occurring in front entrance and traffic congestions etc., have directed these respondents to use other gates more particularly in plaint ‘A’ schedule property by their communication dated 20.07.2024 and whileso, at present with malafide intention the plaintiffs have filed the suit with unclean hands. The plaintiffs say that they can peacefully enjoy the plaint ‘A’ schedule property since it is a private property which is detrimental to the interest of small children which law does not permit. As admitted in plaint, the respondents are running schools for the welfare of the public and whileso, they are concerned of lives of children which cannot at all be restricted by filing this vexatious suit. There are no prima facie and balance of convenience in favour of plaintiff but in favour of the defendants.

15. These defendants submit that the plaintiffs have no cause of action at all to file the present suit. The suit as framed is untenable and the defendants have already put up gate facing ‘A’ Schedule property which the plaintiffs alone restricted from it’s usage by putting up trees, waste materials etc., At present the plaint ‘A’ Schedule property belongs to State of Tamil Nadu over which the plaintiffs can’t claim title and if so that amounts to land grabbing or claiming title over Government property. Hence there are no prima facie in their claim. Further, these respondents put up gate already and whileso, nothing survives in the case (without prejudice) Thus, this petition is devoid of merits.

Therefore, it is prayed that this Hon'ble Court may be pleased to dismiss the petition with costs and thus render justice.

ADVOCATE FOR 1st RESPONDENT **1st RESPONDENT**

VERIFICATION

I, the 1st respondent above named do hereby declare that the facts stated above are true and correct to the best of my knowledge and I signed the same as Coimbatore on

1st RESPONDENT

This Counter Statement filed by the 1st Respondent is adopted by Respondent Nos. 2 and 3.

ADVOCATE FOR RESPONDENT NOS. 2 AND 3

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– Respondents/Defendants

COUNTER STATEMENT FILED BY 1ST RESPONDENT/1st DEFENDANT AND ADOPTED BY RESPONDENT NOS.2 & 3 /DEFENDANT NOS. 2 & 3

Pre on:

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